

Environmental Protection Agency

§ 141.76

(E) Number of instances where the residual disinfectant concentration is not measured and HPC is >500/ml;

(F) For the current and previous month the system serves water to the public, the value of "V" in the following formula:

$$V = \frac{c + d + e}{a + b} \times 100$$

where:

a=the value in paragraph (b)(2)(iii)(A) of this section,

b=the value in paragraph (b)(2)(iii)(B) of this section,

c=the value in paragraph (b)(2)(iii)(C) of this section,

d=the value in paragraph (b)(2)(iii)(D) of this section, and

e=the value in paragraph (b)(2)(iii)(E) of this section.

(G) If the State determines, based on site-specific considerations, that a system has no means for having a sample transported and analyzed for HPC by a certified laboratory within the requisite time and temperature conditions specified by §141.74(a)(3) and that the system is providing adequate disinfection in the distribution system, the requirements of paragraph (b)(2)(iii) (A)–(F) of this section do not apply.

(iv) A system need not report the data listed in paragraph (b)(2)(i) of this section if all data listed in paragraphs (b)(2) (i)–(iii) of this section remain on file at the system and the State determines that the system has submitted all the information required by paragraphs (b)(2) (i)–(iii) of this section for at least 12 months.

(3)(i) Each system, upon discovering that a waterborne disease outbreak potentially attributable to that water system has occurred, must report that occurrence to the State as soon as possible, but no later than by the end of the next business day.

(ii) If at any time the turbidity exceeds 5 NTU, the system must consult with the primacy agency as soon as practical, but no later than 24 hours after the exceedance is known, in accordance with the public notification requirements under §141.203(b)(3).

(iii) If at any time the residual falls below 0.2 mg/l in the water entering the distribution system, the system must notify the State as soon as possible,

but no later than by the end of the next business day. The system also must notify the State by the end of the next business day whether or not the residual was restored to at least 0.2 mg/l within 4 hours.

[54 FR 27527, June 29, 1989, as amended at 65 FR 26022, May 4, 2000]

EFFECTIVE DATE NOTE: At 69 FR 38856, June 29, 2004, §141.75 was amended in paragraph (a)(2)(viii)(G) by removing the citation "§141.74(a)(3)" and adding in its place "§141.74(a)(1)", and in paragraph (b)(2)(iii)(G) by removing the citation "§141.74(a)(3)" and adding in its place "§141.74(a)(1)", effective July 29, 2004.

§ 141.76 Recycle provisions.

(a) *Applicability.* All subpart H systems that employ conventional filtration or direct filtration treatment and that recycle spent filter backwash water, thickener supernatant, or liquids from dewatering processes must meet the requirements in paragraphs (b) through (d) of this section.

(b) *Reporting.* A system must notify the State in writing by December 8, 2003, if the system recycles spent filter backwash water, thickener supernatant, or liquids from dewatering processes. This notification must include, at a minimum, the information specified in paragraphs (b)(1) and (2) of this section.

(1) A plant schematic showing the origin of all flows which are recycled (including, but not limited to, spent filter backwash water, thickener supernatant, and liquids from dewatering processes), the hydraulic conveyance used to transport them, and the location where they are re-introduced back into the treatment plant.

(2) Typical recycle flow in gallons per minute (gpm), the highest observed plant flow experienced in the previous year (gpm), design flow for the treatment plant (gpm), and State-approved operating capacity for the plant where the State has made such determinations.

(c) *Treatment technique requirement.* Any system that recycles spent filter backwash water, thickener supernatant, or liquids from dewatering processes must return these flows through the processes of a system's existing conventional or direct filtration

system as defined in §141.2 or at an alternate location approved by the State by June 8, 2004. If capital improvements are required to modify the recycle location to meet this requirement, all capital improvements must be completed no later than June 8, 2006.

(d) *Recordkeeping.* The system must collect and retain on file recycle flow information specified in paragraphs (d)(1) through (6) of this section for review and evaluation by the State beginning June 8, 2004.

(1) Copy of the recycle notification and information submitted to the State under paragraph (b) of this section.

(2) List of all recycle flows and the frequency with which they are returned.

(3) Average and maximum backwash flow rate through the filters and the average and maximum duration of the filter backwash process in minutes.

(4) Typical filter run length and a written summary of how filter run length is determined.

(5) The type of treatment provided for the recycle flow.

(6) Data on the physical dimensions of the equalization and/or treatment units, typical and maximum hydraulic loading rates, type of treatment chemicals used and average dose and frequency of use, and frequency at which solids are removed, if applicable.

[66 FR 31103, June 8, 2001]

Subpart I—Control of Lead and Copper

SOURCE: 56 FR 26548, June 7, 1991, unless otherwise noted.

§ 141.80 General requirements.

(a) *Applicability and effective dates.* (1) The requirements of this subpart I constitute the national primary drinking water regulations for lead and copper. Unless otherwise indicated, each of the provisions of this subpart applies to community water systems and non-transient, non-community water systems (hereinafter referred to as “water systems” or “systems”).

(2) The requirements set forth in §§141.86 to 141.91 shall take effect on July 7, 1991. The requirements set forth

in §§141.80 to 141.85 shall take effect on December 7, 1992.

(b) *Scope.* These regulations establish a treatment technique that includes requirements for corrosion control treatment, source water treatment, lead service line replacement, and public education. These requirements are triggered, in some cases, by lead and copper action levels measured in samples collected at consumers’ taps.

(c) *Lead and copper action levels.* (1) The lead action level is exceeded if the concentration of lead in more than 10 percent of tap water samples collected during any monitoring period conducted in accordance with §141.86 is greater than 0.015 mg/L (i.e., if the “90th percentile” lead level is greater than 0.015 mg/L).

(2) The copper action level is exceeded if the concentration of copper in more than 10 percent of tap water samples collected during any monitoring period conducted in accordance with §141.86 is greater than 1.3 mg/L (i.e., if the “90th percentile” copper level is greater than 1.3 mg/L).

(3) The 90th percentile lead and copper levels shall be computed as follows:

(i) The results of all lead or copper samples taken during a monitoring period shall be placed in ascending order from the sample with the lowest concentration to the sample with the highest concentration. Each sampling result shall be assigned a number, ascending by single integers beginning with the number 1 for the sample with the lowest contaminant level. The number assigned to the sample with the highest contaminant level shall be equal to the total number of samples taken.

(ii) The number of samples taken during the monitoring period shall be multiplied by 0.9.

(iii) The contaminant concentration in the numbered sample yielded by the calculation in paragraph (c)(3)(ii) is the 90th percentile contaminant level.

(iv) For water systems serving fewer than 100 people that collect 5 samples per monitoring period, the 90th percentile is computed by taking the average of the highest and second highest concentrations.

FOR INSTRUCTIONS, SEE BACK OF FORM

DISCLOSURE SUMMARY PAGE

COMMITTEE NAME (Must be same as on Statement of Organization)
Committee to Re-Elect Stephen Holmes

IMPORTANT: Indicate type of committee you are reporting for: 4

(1) Statewide/Legislative Candidate (2) Statewide PAC (3) State Party (4) County/Local Candidate
(5) County PAC (6) Ballot Issue/Franchise Committee (7) County/City Central Committee
(8) Support State of Candidates

CANDIDATE COMMITTEES ONLY:

Candidate Name
Stephen Holmes

Political Party
Democrat

Office Sought

District (if Senate or House)

County Attorney

FORM

DR-2

(Rev. 07/2003)

DISCLOSURE
REPORT

For Office Use Only

Comm. #

Logged In

Scanned

Computer

Audited

17389

1-21-04

Steven Smith
SIGNATURE OF TREASURER (or person filing this report)

515-387-8463
TELEPHONE

1/19/04
DATE SIGNED

Late filed reports are subject to possible civil and criminal penalties.

SEE INSTRUCTIONS ON BACK AND COMPLETE THE FOLLOWING SENTENCE:

I AM FILING A January 19, 2004 REPORT FOR AN/A (1) ELECTION /(2) NON-ELECTION YEAR.
(report date)

Indicate one 2

☐ CHECK IF AMENDMENT TO REPORT DATED _____

☐ Check if this is final (termination) report and attach Notice of Dissolution Form DR-3.
(You must continue to file reports until a Notice of Dissolution is filed.)

Local Committees, enter Date of Election
November 5, 2002

County & Local Committees, enter County in
which Election is held
Story County

STATEMENT OF CASH ON HAND

CASH ON HAND at the beginning of the reporting period. (This is the total of all monies held by the committee. This amount **MUST** be the same as the cash on hand at the end of the last reporting period, or must be zero if this is first report filed.)

3,164.49

ADD TOTAL MONEY TAKEN IN THIS PERIOD

Schedule A: Cash Contributions total (Attach Schedule A) (**also see in-kind below)

0

Schedule F: Loans Received total (Attach Schedule F)

0

Schedule H: Total Sales of Campaign Property (Attach Schedule H)

0

(Schedule H applies to Candidates' Committees Only)

SUB-TOTAL \$ 3,164.49

SUBTRACT TOTAL MONEY SPENT THIS PERIOD

Schedule B: Expenditures total (Attach Schedule B) (**also see debts and loans below)

0

Schedule F: Loan Repayments total (Attach Schedule F)

0

CASH ON HAND at the end of this reporting period (if final report, balance must be zero) (Attach DR-3)

3,164.49

**UNPAID BILLS (From Schedule D - Attach Schedule D)

\$

**IN KIND CONTRIBUTIONS (From Schedule E - Attach Schedule E)

221.22

**OUTSTANDING LOANS (From Schedule F - Attach Schedule F)

16,250.00

CANDIDATE COMMITTEES ONLY:

CONSULTANT BREAKDOWN (Schedule G Attached?)

☐ YES ☐ NO

VALUE OF CAMPAIGN PROPERTY (From Schedule H - Attach Schedule H)

\$

FOR INSTRUCTIONS, SEE BACK OF FORM

COMMITTEE NAME (Must be same as on Statement of Organization)

Committee to Re-Elect Stephen Holmes

SCHEDULE E (Rev. 06/97)	IN KIND CONTRIBUTIONS
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☐ CHECK THIS BOX IF
AMENDING FORM

DATE RECEIVED (MM/DD/YR)	NAME AND ADDRESS OF CONTRIBUTOR	RELATIONSHIP TO CANDIDATE (if applicable)	DESCRIPTION OF IN KIND CONTRIBUTION	ESTIMATED FAIR MARKET VALUE	✓ IF FOR FUND-RAISER CONTRIBUTION
01/13/04	Forgive Unpaid Bills by Stephen Holmes, 27202 560th Avenue, Ames, Iowa 50010	Candidate	Snacks, mailing, labels, and brochures	\$ 221.22	☐
					☐
					☐
					☐
					☐
					☐
					☐
					☐
					☐
					☐
SUB-TOTAL				\$ 221.22	
TOTAL (If last page of this schedule)				\$ 221.22	

*Disclosure law requires candidates to disclose the relationship of any relative making an in kind contribution to the committee. Relationship must be shown to the third degree of consanguinity (blood relatives) and affinity (relatives by marriage). (See Page 2 of forms packet.) If surname of contributor is the same as candidate, but there is no familial relationship, enter "not applicable" in the relationship column.

Page 1 of 1
(for Schedule E)

TO: Register of Copyrights Copyright Office Library of Congress Washington, D.C. 20559	REPORT ON THE FILING OR DETERMINATION OF AN ACTION OR APPEAL REGARDING A COPYRIGHT
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In compliance with the provisions of 17 U.S.C. 508, you are hereby advised that a court action or appeal has been filed on the following copyright(s):

☐ ACTION ☐ APPEAL		COURT NAME AND LOCATION	
DOCKET NO.	DATE FILED		
PLAINTIFF			
		DEFENDANT	
COPYRIGHT REGISTRATION NO.	TITLE OF WORK		AUTHOR OR WORK
1			
2			
3			
4			
5			

In the above-entitled case, the following copyright(s) have been included:

DATE INCLUDED	INCLUDED BY ☐ Amendment ☐ Answer ☐ Cross Bill ☐ Other Pleading		
COPYRIGHT REGISTRATION NO.	TITLE OF WORK		AUTHOR OF WORK
1			
2			
3			

In the above-entitled case, a final decision was rendered on the date entered below. A copy of the order or judgment together with the written opinion, if any, of the court is attached.

COPY ATTACHED ☐ Order ☐ Judgment	WRITTEN OPINION ATTACHED ☐ Yes ☐ No	DATE RENDERED
CLERK	(BY) DEPUTY CLERK	DATE

DISTRIBUTION:

1) Upon initiation of action, mail copy to Register of Copyrights	2) Upon filing of document adding copyright(s), mail copy to Register of Copyrights	3) Upon termination of action, mail copy to Register of Copyrights
4) In the event of an appeal, forward copy to Appellate Court	5) Case File Copy	

Rep. Ken Calvert introduced a bill Thursday to allow drilling off the coast of California. Rep. Dana Rohrabacher this week put in a measure to exempt solar projects from environmental rules. Both Orange County lawmakers aren't expected to be able to get these bills through this year because o...

Rep. Ken Calvert introduced a bill Thursday to allow drilling off the coast of California. Rep. Dana Rohrabacher this week put in a measure to exempt solar projects from environmental rules.

Both Orange County lawmakers aren't expected to be able to get these bills through this year because of Democratic opposition. But both said such measures are needed to begin addressing the current pain at the pump.

House Speaker Nancy Pelosi said that offshore drilling is "off the table." And Democrats have been consistently unwilling to bend the kind of environmental rules Rohrabacher, R-Huntington Beach, wants to circumvent.

Pelosi made those comments as Republicans blocked a move by the Democrats to pass a bill that would have pushed drilling on federal lands already leased by oil companies.

Rohrabacher, Calvert and Reps. Ed Royce, R-Fullerton and **John Campbell**, Irvine, voted against the Democratic bill – called the Drill Act. Reps. Gary Miller, R-Diamond Bar and Loretta Sanchez, D-Garden Grove, had family emergencies and were not on Capitol Hill for the vote.

Although the Democrats' bill received a majority of votes, it didn't meet the two-thirds majority it needed because the bill was brought up outside of the regular procedures.

"All of us are frustrated," said Calvert. "I go home and people are absolutely beside themselves

about what they're having to pay. They're looking for us to do something, not this charade that the democratic majority put on today."

Calvert said it's clear that there is oil to be had offshore and said "we can drill off the coast of California beyond the sight line" and provide enough revenues to the state to deal with its deficit.

Under Calvert's measure – called the MORE Act, Maximize Offshore Resource Exploration – would revoke the congressional moratorium on offshore drilling, the only thing standing in way of such efforts now that President Bush this week reversed an executive order banning such drilling. Rohrabacher is one of 13 original co-sponsors of Calvert's bill. No Democrats have signed on to it.

The bill also says that states would get 75 percent of the royalties the offshore drilling leases would provide. Drilling would only be allowed starting 25 miles from the shoreline. The first 25 miles belongs to the states.

If, the bill also says, states agree to drilling within 25 miles of their coastline, they share of the royalties would increase to 90 percent.

Calvert dismissed the Democrat's argument that there is already 68 million acres of federal lands leased to the oil companies that are not being used.

"The Democrats want to drill where there's no oil," Calvert said. But Pelosi said at a news conference Thursday that oil companies have told her they're not using those lands because either "it takes as long time" or "they don't have the equipment."

Rohrabacher said he is introducing a bill to waive environment impact statement requirements for solar projects in an effort to jump-start that technology.

"My bill simply says that in this time of crisis we should exempt solar energy projects from the need for the very complicated and drawn out EIR reports," Rohrabacher said.

"Are we going to do it?" Rohrabacher said." It depends on if the public – when they start filling up their cars with gas and seeing it's \$80 or \$90 – whether they scream and yell and demand that their government quit representing radical environmentalists."

Dated: October 8, 2009.

Jennifer Spaeth,

Director, Office of Federal Advisory Committee Policy.

[FR Doc. E9-24872 Filed 10-15-09; 8:45 am]

BILLING CODE 4140-01-P

DEPARTMENT OF HEALTH AND HUMAN SERVICES

National Institutes of Health

National Institute of Allergy and Infectious Diseases; Notice of Closed Meeting

Pursuant to section 10(d) of the Federal Advisory Committee Act, as amended (5 U.S.C. App.), notice is hereby given of the following meeting.

The meeting will be closed to the public in accordance with the provisions set forth in sections 552b(c)(4) and 552b(c)(6), Title 5 U.S.C., as amended. The contract proposals and the discussions could disclose confidential trade secrets or commercial property such as patentable material, and personal information concerning individuals associated with the contract proposals, the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.

Name of Committee: National Institute of Allergy and Infectious Diseases Special Emphasis Panel; "Population Genetics Analysis Program: Immunity to Vaccines/Infections".

Date: November 12, 2009.

Time: 8 a.m. to 6 p.m.

Agenda: To review and evaluate contract proposals.

Place: Renaissance M Street Hotel, 1143 New Hampshire Avenue, NW., Mount Vernon Room, Washington, DC 20037.

Contact Person: Katrin Eichelberg, PhD, Scientific Review Officer, Scientific Review Program, Division of Extramural Activities, National Institutes of Health/NIAID, 6700B Rockledge Drive, MSC 7616, Bethesda, MD 20892-7616, 301-451-2899, keichelberg@niaid.nih.gov.

(Catalogue of Federal Domestic Assistance Program Nos. 93.855, Allergy, Immunology, and Transplantation Research; 93.856, Microbiology and Infectious Diseases Research, National Institutes of Health, HHS)

Dated: October 8, 2009.

Jennifer Spaeth,

Director, Office of Federal Advisory Committee Policy.

[FR Doc. E9-24870 Filed 10-15-09; 8:45 am]

BILLING CODE 4140-01-P

DEPARTMENT OF HEALTH AND HUMAN SERVICES

National Institutes of Health

National Institute of Allergy and Infectious Diseases; Notice of Closed Meeting

Pursuant to section 10(d) of the Federal Advisory Committee Act, as amended (5 U.S.C. App.), notice is hereby given of the following meeting.

The meeting will be closed to the public in accordance with the provisions set forth in sections 552b(c)(4) and 552b(c)(6), Title 5 U.S.C., as amended. The grant applications and the discussions could disclose confidential trade secrets or commercial property such as patentable material, and personal information concerning individuals associated with the grant applications, the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.

Name of Committee: Microbiology, Infectious Diseases and AIDS Initial Review Group, Acquired Immunodeficiency Syndrome Research Review Committee.

Date: November 13, 2009.

Time: 8 a.m. to 5 p.m.

Agenda: To review and evaluate grant applications.

Place: Hyatt Regency Bethesda, One Bethesda Metro Center, 7400 Wisconsin Avenue, Bethesda, MD 20814.

Contact Person: Erica L. Brown, PhD, Scientific Review Officer, Scientific Review Program, Division of Extramural Activities, National Institutes of Health/NIAID, 6700B Rockledge Drive, MSC 7616, Bethesda, MD 20892-7616, 301-451-2639, ebrown@niaid.nih.gov.

(Catalogue of Federal Domestic Assistance Program Nos. 93.855, Allergy, Immunology, and Transplantation Research; 93.856, Microbiology and Infectious Diseases Research, National Institutes of Health, HHS)

Dated: October 8, 2009.

Jennifer Spaeth,

Director, Office of Federal Advisory Committee Policy.

[FR Doc. E9-24866 Filed 10-15-09; 8:45 am]

BILLING CODE 4140-01-P

DEPARTMENT OF HEALTH AND HUMAN SERVICES

Food and Drug Administration

[Docket No. FDA-2009-N-0664]

National Mammography Quality Assurance Advisory Committee; Notice of Postponement of Meeting

AGENCY: Food and Drug Administration, HHS.

ACTION: Notice.

SUMMARY: The Food and Drug Administration (FDA) is postponing the meeting of the National Mammography Quality Assurance Advisory Committee scheduled for November 2, 2009. This meeting was announced in the **Federal Register** of October 1, 2009 (74 FR 50803). The postponement is due to guidance documents planned for discussion at the meeting are not yet available. A future meeting date will be announced in the **Federal Register**.

FOR FURTHER INFORMATION CONTACT:

Normica Facey, Center for Devices and Radiological Health, Food and Drug Administration, 10903 New Hampshire Ave., Silver Spring, MD 20993, 301-796-5914, or FDA Advisory Committee Information Line, 1-800-741-8138 (301-443-0572 in the Washington, DC area), code 3014512397. Please call the Information Line for up-to-date information on this meeting.

Dated: October 9, 2009.

David Horowitz,

Assistant Commissioner for Policy.

[FR Doc. E9-24895 Filed 10-15-09; 8:45 am]

BILLING CODE 4160-01-S

DEPARTMENT OF HEALTH AND HUMAN SERVICES

Food and Drug Administration

[Docket No. FDA-2009-N-0664]

Vaccines and Related Biological Products Advisory Committee; Notice of Meeting

AGENCY: Food and Drug Administration, HHS.

ACTION: Notice.

This notice announces a forthcoming meeting of a public advisory committee of the Food and Drug Administration (FDA). At least one portion of the meeting will be closed to the public.

Name of Committee: Vaccines and Related Biological Products Advisory Committee.

General Function of the Committee: To provide advice and recommendations to the agency on FDA's regulatory issues.

Date and Time: The meeting will be held on November 18, 2009 from 8 a.m. to approximately 5:45 p.m. and on November 19, 2009 from 8 a.m. to approximately 3:15 p.m.

Location: Bethesda Marriott, 5151 Pooks Hill Rd., Bethesda, MD.

Contact Person: Christine Walsh or Denise Royster, Center for Biologics Evaluation and Research (HFM-71), Food and Drug Administration, 1401 Rockville Pike, Rockville, MD 20852,